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Socio-economic Conditions of Migrant Workers in GCC Countries: A Critical Overview

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Abstract

Migration is a worldwide phenomenon that has been happening since the dawn of human history. The main reasons for migration are economic and political. This could also be understood in terms of push and pull factors. When people migrate to other places due to the adverse situation that compels them, people is called the push factor. On the other hand, when people are attracted to get better opportunities elsewhere is called the pull factor. Gulf countries are one of the most important destinations where a large number of migrants have migrated. They have come to the GCC countries from several countries, especially South Asian countries. This is estimated that about 30 million migrants are living in the GCC countries. Of them, there are approximately nine million Indians are living in the region. This is evident that the working and living conditions of migrant workers are said to be poor. Their rights are often violated. This is also reported that their salaries are not paid on time. It is sometimes noted that their employers badly exploit them. The main aim of the paper is to examine all these issues deeply. This study would be largely based on secondary sources of literature available. The six GCC countries, namely, Saudi Arabia, Bahrain, Kuwait, Oman, Qatar and the UAE, have been considered. The paper also tries to assess how the Covid-19 pandemic has adversely affected the socio-economic life of migrant workers.

Introduction

The movement of a people or person from one place to another place is known as migration. It could be from one region to another region and one country to another country. In contemporary times, the main reasons behind human mobility are social, economic, and natural factors.Some migration could be voluntary, whereas some are forced. According to the International Migrant Stock 2019 report from the Population Division of the United Nations Department of Economic and Social Affairs, India has about 17.5 million migrants. This makes India one of the top international providers of human mobility. About 6.4% of the people who move around the world are from India. The United Nations Migration Agency, an international organization for migrants, says that human migration occurs when a person moves from one international border to another or from one country to another. Regardless of a person's legal status, whether they moved voluntarily or were forced to move. In terms of internal migration moving from one state to another state Indian constitution provide pretty flexible rights to their citizens. Article 19 of the Indian constitution says that every Indian citizen is free to move anywhere inside India's borders. According to the 2011 census, about 45 million Indians left the place where they were born to make money and live a better life elsewhere.

The social aspect of migration in these conditions, people have chosen the process of migration because they want to lock in a higher quality of life, including a better quality of education and better health facilities, and so on. Another aspect of migration is the economic aspect under this aspect, many individuals are opting for the process of migration to improve their chances of securing a job. It is also possible that people will choose to migrate because they cannot find better work opportunities in their own country. In contemporary times, these are the primary factors that lead people to choose the migration process.

Migrant Workers in the Gulf Countries

After the oil boom of the 1970s, in GCC regions, huge populations moved to Gulf countries in search of work. During this time Gulf countries mostly hired workers from India or the southern part of Asia. The main reason behind this is to hire most of the workers from these regions as South Asian workers was willing to work for low wages and didn't get involved in the internal politics of the Gulf countries.

Migrant workers from South Asian Countries in nature un-skilled workers constitute the backbone of the Gulf construction industry's groindustry'sugh the Gulf Cooperation Council (GCC) considers migrants to be temporary, some have been living there for years, and their third generation will be labourers in GCC. Approximately 70% of Indian migrants work as a driver, domestic helpers, or laborers on building sites. If we look at migration patterns, we can see that the majority of migrants came from Kerala in the past, but currently, low-skilled laborers are migrating from Uttar Pradesh and Bihar. Uttar Pradesh, Bihar, Kerala, Tamil Nadu, and Telangana are the states from which a substantial volume of labor migration occurs.

The patterns of migration toward GCC countries have mostly contract workers, also known as blue-collar jobs. In GCC countries, migrant workers do not get permanent citizenship. Relatively migrant workers get permanent citizenship in the European country as well as in American countries.There are

some important reasons behind choosing GCC Countries as destination countries for migrant workers. Two of them are the major reason for the migration towards GCC Countries. The reasons are given below:

Economic effects

Social effects

Economic Effects: After the oil boom in the region, many development projects and oil industries were established in the GCC region, which demanded a bunch of skilled and unskilled labor for production, construction and so many other works. These demands were the main cause of the heavy migration of contract workers. Those who could not find an appropriate employment opportunity in their origin nation opted to migrate toward GCC Countries. This type of migration is the cause of financial upliftment.

Labor migration from one country to another plays a vital role in reducing unemployment in their origin country of migrant workers. It also helps the economic growth of both country (labor-sending country and labor-receiving country), the labor-sending country is getting remittances instead of their labor force, and labor receiving country are getting the skilled labor and speed up production with the help of migrant labor force.

Social Effects: Migration towards the Gulf region has also brought social benefits to the family of migrant workers and their dependents. The impact of this benefit can be seen in many sectors such as education, living standard, and also in the health sector. It also helps to eradicate the poverty of migrant workers and their family and also help to live with better social status in society.

The common practice in all GCC regions is those migrant workers who come from Western countries face fewer problems than those from South Asia, Africa and other European countries. A similar situation for Nationals workers and also they enjoy all the basic rights which are related to workers. The salary of migrant workers who belong to other than the Western country is comparably less than National Workers and less than migrant workers of the Western country.

This data represents the all-foreign labor force in GCC countries but mostly focused on South Asian migrant workers. Most of them are unskilled workers and some are semi-skilled workers working in construction, mining, sanitation, manufacturing custodial work, oil field work, mechanics, maintenance, warehousing, firefighting, water in the cafeteria etc.

Table 1 demonstrates how Saudi Arabian authorities and the sponsor (kafeel) of migrant workers pay minimum wage compared to other Gulf countries. Here this data revealed only the monthly salary that migrant workers earn did not include the other allowances such as transportation costs, accommodation allowance, electricity bills, and water bill, which employers generally give to employees.

Table 1: Average Salary of Blue-Collar Migrant Workers in the Gulf Countries

Gulf Countries	*Average Salary of Migrants In US$*
Qatar	US$464
Kuwait	US$432
Bahrain	US$323
Oman	US$270
Saudi Arabia	US$221

Source:Abdoulay Diop, KienTrung Le, and Michael C.Ewers, *India Migration Report* 2016 (Routledge) Edited by S.IrudayaRajan. P, 78

Tables 2 and 3 display how Gulf countries provide some other benefits, a basic requirement of migrant workers. Despite salary, they are receiving other benefits such as housing allowance, health insurance, paid holiday, food allowance, free water and electricity, paid sick leave, access to training, and other benefits.

Housing Allowance-In Saudi Arabia, most of the governmental organizations and kafeel provide the house for accommodation to the migrant worker instead of that they directly cut the amount of accommodation from their salary. In addition to their salary about 44% of migrant workers is the beneficiary of the housing allowance in the GCC region except for the UAE. In Oman highest number of migrant workers 75% are the beneficiary of housing allowance, 37% of migrant workers received housing allowance in Qatar, and Bahrain provide housing allowance to 42% of migrant workers. In Kuwait second highest number of migrant workers 64% are the beneficiary of housing allowance, and Saudi Arabia provides 0% housing allowance to migrant workers.

Food Allowance-Despite their salary, about 31% of migrant workers are the beneficiary of food allowances. Saudi Arabia provides food allowance to 35% of migrant workers; Qatar to 22%, Kuwait to 10%, Oman to 78%, and Bahrain to 11%. These findings indicate that the majority of migrant workers in the GCC region, especially in Saudi Arabia, have to sacrifice an amount of their wage for drink and food expenses.

Transportation Allowance-In the GCC region except for UAE 58% of migrant workers are the beneficiary of transportation allowance out of it 72% of migrant workers in Oman, 62% in Bahrain, 49% in Saudi Arabia, 55% in Kuwait, 51% of migrant workers in Qatar are the beneficiary of travel allowances. These data indicate that more than 50% of migrant workers have to spend their salary on transportation services.

Paid Leave, Sick leave, and Annual Leave-The majority of migrant workers get their annual leave only after rendering services for at least two years in their host countries. In the GCC region, except for UAE, 47% of migrant workers benefit from paid and sick leave. Out of 47, 77% of migrant workers are the beneficiary of paid and sick leave in Oman. In Saudi Arabia, 29% of migrant workers is the beneficiary of paid leave and 35% of a migrant worker is the beneficiary of paid sick leave. That finding indicates the majority of migrant workers in Saudi Arabia are not getting paid sick leave, which is an indicator of human rights violations. Kuwait provides paid sick leave to 31% of migrant workers and paid leave to 24% of migrant workers. In Bahrain, the beneficiary of paid sick leave is 73% of migrant workers and the beneficiary of paid leave of 72% of migrant workers. In Qatar 41% of migrant workers are the beneficiary of paid leave and 21% of migrant workers are the beneficiary of paid sick leave.

Health insurance and Accidental insurance-The data also provide information regarding the health insurance of migrant workers and also related to the accidental insurance of migrant workers, which is given by the employers to employees. In the GCC region, except UAE and Saudi Arabia all GCC countries provide health insurance to 79% of migrant workers and 16% of migrant workers are the beneficiary of accidental insurance. In Kuwait, the number of migrant workers who benefit from health insurance is 52 and 3% of migrant workers are the beneficiaries of accidental insurance. 22% of migrant workers are getting the benefit of health insurance in Bahrain and also 17% of migrant workers in Bahrain are getting accidental insurance. In Qatar, 21% of migrant workers are the beneficiary of health insurance and 10% of migrant workers are the beneficiary of accidental

Table 2: Percentage of social beneficiaries of migrant workers in Gulf countries

Name of benefits	*Kuwait*	*Saudi Arabia*	*Bahrain*	*Oman*	*Qatar*	*Average*
Food allowance	10	35	11	78	22	31
Health insurance	52	79	22	77	21	50
Accident insurance	3	16	17	75	10	24
Free water and electricity	45	60	72	82	51	62
No benefit	4	5	12	13	21	11
Housing allowence	64	0	42	75	37	44

Source: Abdoulay Diop, KienTrung Le, and Michael C.Ewers, *India Migration Report* 2016 (Routledge)Edited by S.IrudayaRajan. P, 79

Table 3: Percentage of economic beneficiaries of migrant workers in GCC countries

Name of benefit	*Kuwait*	*Saudi Arabia*	*Bahrain*	*Oman*	*Qatar*	*Average*
Paid holiday	24	29	63	77	41	47
Transport to/from work	55	49	62	72	51	58
Access to training	2	3	1	25	0	6
Paid sick leave	31	35	73	77	21	47
Other benefit	1	0	0	0	12	3

Source: Abdoulay Diop, KienTrung Le, and Michael C.Ewers, *India Migration Report* 2016 (Routledge) Edited by S.IrudayaRajan. P, 79

insurance. 77% of migrant workers in Oman are getting the benefit of health insurance and 75%of migrant workers are getting the benefit of accidental insurance.

Despite all the allowances, some Migrants workers are not getting any kind of benefits. In the GCC region except for UAE, 11% of migrant workers are not getting any kind of benefits. Out of 11% in Bahrain, 12% of migrant workers are not beneficiaries of any kind of benefits, in Saudi Arabia 5%, in Kuwait 4%, in Oman 13%, and in Qatar 21% of migrant workers are not getting any single benefits except their monthly salary.

Source of data-This data was collected by Abdoulay Diop, KienTrung Le, and Michael C.Ewers, in the GCC region. The researcher surveyed the labor camp in the GCC region and interviewed 709 migrant workers in Kuwait, 702 migrant workers from Saudi Arabia, 701 from Bahrain, 707 from Oman, and 847 from Qatar. In the labor camp researcher randomly selected migrant workers for interviews who are 18 years old and who lived in labor camps during the survey period in the GCC region.

Notes-United Arab Emirates was not included in this survey because the researcher was not obtained administrative permission to get the field survey.

This study also highlights some other issues of migrant workers which are related to the living and working condition of migrant workers such as forced labor, the kafala system (sponsor ship problem), Working hour, Denial of freedom of association, and also, many other issues which contribute to human rights violation of migrant workers is unnoticed and also these issues are not reported by migrant workers due to some conditional reason.

Forced labor-According to Forced Labor Convention 1930 of ILO,Article2 of ILO forced labour convention define the category of forced labor "forced or com"ulsory labour shall mean all work or service which is exacted from any person under the menace of any penalty and for which the said person has not offered himself voluntarily." In some con"itions the term forced or compulsory labour shall not include the condition of forced labor as stated in ILO forced labor convention 1930 article no. 2.

The Human right watch is an international non-governmental organization (HRW) that organization mainly conducts research and advocacy on human rights. The organization always highlights the human rights issues of migrant workers in West Asian countries. The HRW recently interviewed 36 people who are domestic workers in Saudi Arabia whose situation clearly shows the condition of forced labor.

***Kafala System* (Sponsorship System)-**Under the *kafala* system in Gulf countries, national governmental companies or private companies hired a large number of workforce that workforce, known as migrant workers. Under the kafala system kafeel (contractor) have full authority over migrant workers. The migrant worker also fully depends on kafeel for economic and legal needs. Here economic needs refer to the wages of workers and other allowances such as housing, transportation, food and drink and many other provided by the kafeel to the migrant workers and legal need refers to the identity documentation issue such as work permit in the country known as (Iqama).

Most of the migrant workers come to Gulf countries on a two-year contract period. During the contract period, migrant workers cannot change their job and also, and he cannot leave the country before the contract period. For domestic migrant workers, it is obligatory to stay in the house of the kafeel, especially for women and girl migrant workers. In that situation, women and girl domestic migrant workers are facing the problem of human rights violations and are also a victim of forced labor. ILO Convention number 189, 2011 related to domestic migrant workers. Under this convention, article number 5 provides special rights: "Each Member s"all take measures to ensure that domestic workers enjoy effective protection against all forms of abuse, harassment and violence."

Working ho"r-ILO convention number 189, 2011 related to domestic migrant workers, under this convention article number 10 provide some basic criteria for working hour which are following.

"Each Member s"all take measures towards ensuring equal treatment between domestic workers and workers generally in relation to normal hours of work, overtime compensation, periods of daily and weekly rest and paid annual leave in accordance with national laws, regulations or collective agreements, taking into account the special characteristics of domestic work".

1- "Weekly r"st s"all be at least 24 consecutive hours".

2- "Periods "urin" which domestic workers are not free to dispose of their time as they please and remain at the disposal

of the household in order to respond to possible calls shall be regarded as hours of work to the extent determined by national laws, regulations or collective agreements, or any other means consistent with national practice".

According "o many migrant workers, it's very commit'so have an extra working hour without any overtime wage and also, they won't have a wwon't holiday. According to the national and international conventions, they have the right to a weekly holiday of at least 24 hours but some workers work 18 long hours including Fridays which are the national holiday of the country.

Denial of Freedom of Association-"In December 2"06, the ITUC (International trade union confederation) adopted an Action Plan on Migrant Workers which focuses on four priorities protection of rights, unionization, sustainable development and awareness raising."According to"ITUC one of the best ways to check the exploitation of migrant workers is to provide the trade union and provide the right to join a trade union. According to the latest ITUC annual survey, most of the migrant workers in the GCC region remain in a vulnerable situation just because of the absence of trade union rights for migrant workers. In the gulf region except Kuwait, none of the countries ratified the ILO convention number 87 and ILO convention number 98 which are related to the "Freedom of Association and Protection of the Right to Organise, Convention 1948 (ILO c-087)"**,** "ILO Conven"io" 98 Right to Organise and Collective Bargaining Convention 1949." These two conventions are providing basic rights to migrant workers. Saudi Arabia is not a signatory of both conventions.

Impact of COVID-19-More than 30 million migrants live in the Gulf Cooperation Council (GCC) countries of Bahrain, Kuwait, Oman, Qatar, Saudi Arabia, and the United Arab Emirates (UAE). In 2019, these migrants accounted for 51% of the GCC's overall GCC'sation and sent USD 115 billion in remittances to their home country.

The United Arab Emirates (UAE) announced the first case of COVID-19 in the Gulf Cooperation Council (GCC) countries (specifically, Qatar, Saudi Arabia, UAE, Oman, Kuwait, and Bahrain) in January 2020, after the epidemic was originally identified in China.

Human Rights Watch claimed that the deportation centre in Riyadh is keeping hundreds of predominantly Ethiopian migrant workers in deplorable conditions that amount to ill-treatment. Detainees told Human Rights Watch that they were confined in cramped rooms for long periods and that guards tortured and assaulted them with rubber-coated metal rods, resulting in at least three deaths in custody between October and November. The Saudi authorities should reveal the most important documents as soon as possible.

Human Rights Watch spoke by phone with seven Ethiopian migrants arrested in a Riyadh deportation centre, as well as two Indian men who were detained in the same facility before being deported in November 2020. Authorities apprehended and jailed the majority of the detainees because they did not have legitimate residency cards.

Apart from the above discussion, it is apparent that issues like lack of access to an effective legal system, lack of access to good food and drink and several issues which could be several in numbers but here mainly through this article, it is dealt further only with the prominent issues discussed above. In my analysis, I found the basic rights of migrant workers have been violated in many forms. For example, many migrant workers are forcefully exploited in different public and private sectors which fosters forced labor practices. To compare inhabitant and migrant worker salaries, I found generally migrant workers face disparities the different employers. They got least salaries compared to national workers from Western countries. This finding shows that GCC countries failed to protect the guideline given by International Labour Organization. These countries often violate the ILO Conventions Nos. 97 and 143 which protect the interest of migrant workers. It is observed that individual countries have taken alternative measures, such as bilateral agreements, implementation of model contracts and establishment of institutions to defend the rights of migrant workers. This is proved to be partially successful. Furthermore, it is noted that the 1990 Convention on the Rights of Migrant Workers and their family members have not been ratified by any important countries such as the Gulf or South Asian counties. An early ratification of these Conventions by the Gulf Cooperation Council and the South Asian countries will set the tone to improve lot of migrant workers and their working and living conditions.

It is also important that labor-sending countries recognize the role of trade unions by enhancing their institutional capacity and developing strategies to protect the rights of migrant workers. This can be made possible by intervening with the help of trade unions for holding a pre-departure training orientation programme. Some arrangements of return migrants also must be taken into account as their rehabilitation and reintegration into their home countries are a must for the development of the country in general and the welfare of migrants in particular. Unions can also play the role of catalysts in formulating a protective policy. Moreover, this is also expected that these unions must pressure their respective government to have bilateral agreements with labor in the GCC countries. There is no doubt that the monitoring role of trade unions can be crucial for controlling unscrupulous recruiting agencies. This kind of arrangement is successful in some labor-sending countries. Networking between trade unions in labor-sending and labor-receiving countries can be a key to sharing migration information and providing effective services for migrant workers. Trade unions can take up an educative role in matters relating to international labor standards for both migrants and union members. These will be the cornerstones of building a protective regime for the welfare of migrant workers and their family members.

CONCLUSIONS

Finally, we conclude by saying that the overwhelming majority of migrants are presently from South Asia. India is a leading country in this migration arena. More than 30% of the total migrant workers are from India. These migrant workers are indeed big economic and strategic assets as they make a lot of contributions to both their home countries and the Gulf countries. But the big irony is that their rights are not sufficiently protected as they deserve. Furthermore, their interests are not adequately addressed by the available legal framework. They are not able to secure their rights and privileges in the Gulf countries. Now the time has come to consider the welfare of these migrant workers as the top priority for both the home and the host countries alike. This could be made possible when all origin and destination countries are able to adopt the UN International Conventions dealing with migrant workers and their family members. Moreover, it is also suggested to promote migrants' we migrants eloping bilateral relations in terms of labor law between labor-sending countries and the Gulf countries.

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